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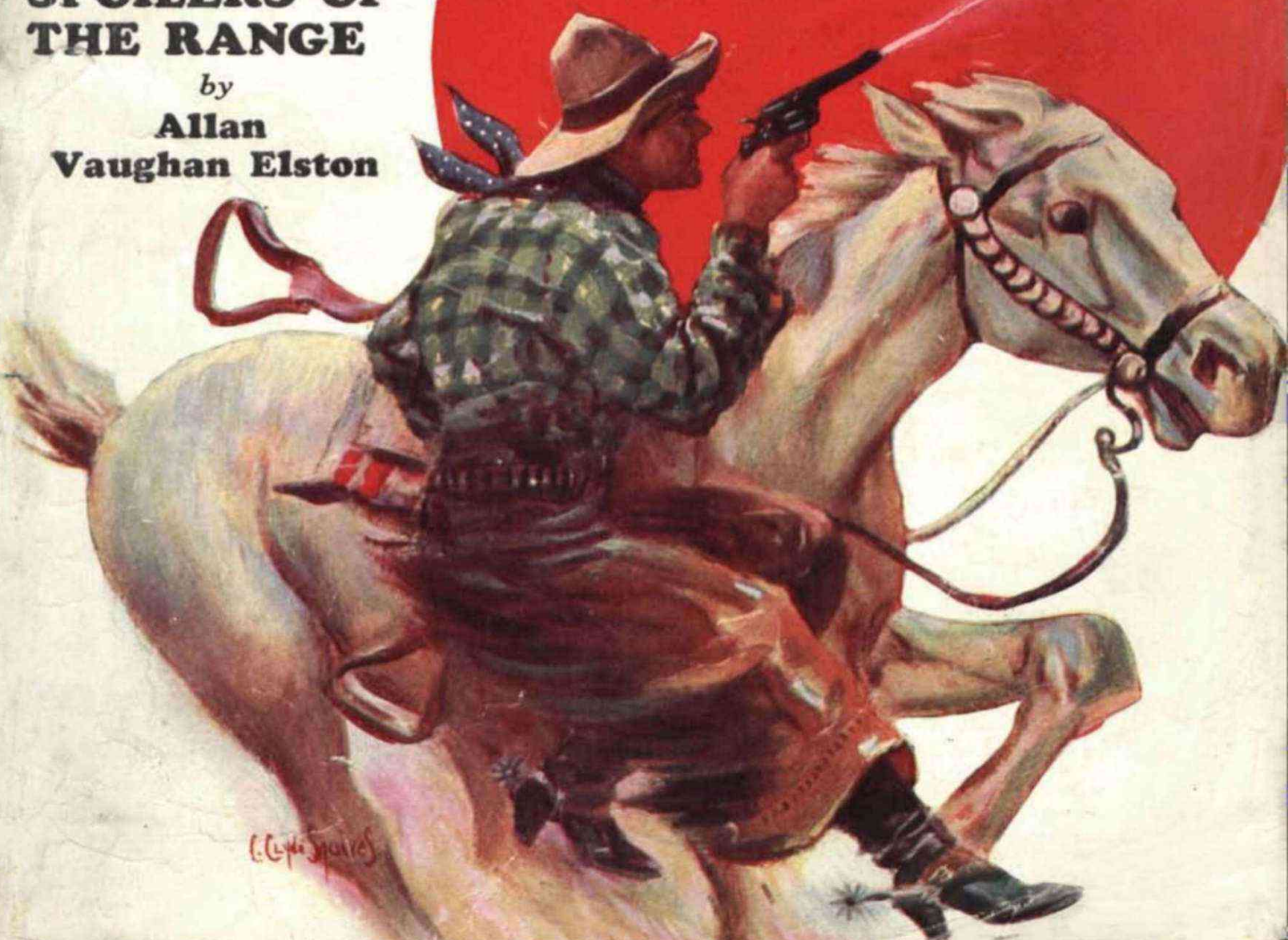
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SPOILERS OF THE RANGE

by

Allan
Vaughan Elston



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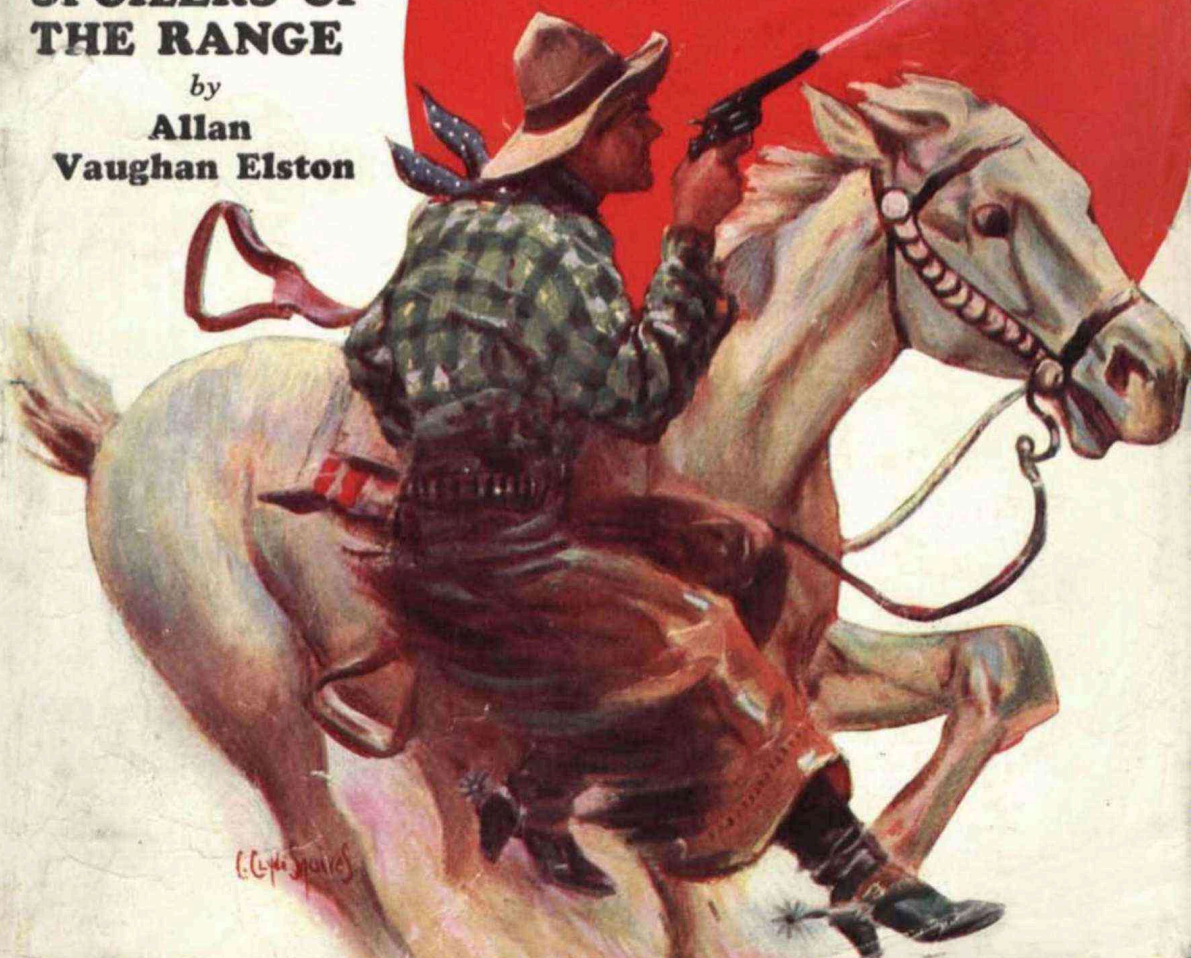
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The Project Gutenberg eBook of His brother's keeper

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KEEPER ***



HIS BROTHER'S KEEPER

by W. C. Tuttle

Author of "Letters from a Home-Made Cowboy" "The Wages of Greed," etc.

WHEN THE SHERIFF OF CALOR STARTED OUT INTO THE BAD LANDS AFTER RED COWAN, MEN WOULD HAVE BET THAT HE WOULD GET HIS MAN. BUT THE DESERT GODS SAW STRANGE JUSTICE BEFORE THE LAW WAS SATISFIED

It was always hot in the Bitter Water Valley, and the hills were like rumpled yellow and gray blankets, shimmering in the summer sun. Folks didn't tan there—they simply charred. The winds were hot, even in the shade—when there was any wind.

The old dirt road, inches deep in dust, wound in and out among the old lava beds, like a long, yellow worm, with its head in the town of Calor, its few tails ending at the scattered ranches. The valley was not a summer resort, and those who were financially able went into the far mountains, to escape the heat.

Along this winding, yellow road came a team and wagon, almost hidden in a cloud of dust, which drifted up from wheel and hoof like the smoke from a foundry stack. On the seat were a man and a woman, and in the back of the wagon was a single trunk, already dust covered.

The woman had a scarf twisted about her mouth and nose, while the man's face to his eyes was covered with a bandana handkerchief; two masked figures, their dusty eyes blinking, red-rimmed. Their conversation

was limited; had been limited for several weary miles, but now they struck a slight raise, where the dust was less deep.

“I had to do it, Joe,” said the woman, as though picking up the conversation of an hour gone. “I just had to.”

“I know it, Mrs. Deming,” said the man nodding slowly. “I seen it comin’.”

He spat dryly, still nodding. “I told Jim. I told him he was a fool. But,” resignedly, “yuh can’t tell him nothin’. Bull-headed as hell, Jim is. He read me the riot act. Said fer me to mind my own business.”

“And he’ll fire you, Joe.”

The man turned slowly and looked at the woman. She had removed the scarf now. Mrs. Jim Deming, wife of Jim Deming, sheriff of Calor, had been a pretty girl in her youth. She was still pretty, except that her hair was gray and her once smooth face was creased with deep lines. Her gray eyes were clouded with sadness, as she looked at Joe Mills, her husband’s deputy.

Joe was tall, thin, harsh-faced, burned to the color of a dark Indian. Joe Mills was as hard as the lava beds, but he had found a man harder than he. Jim Deming, known as “Duty” Deming, was so hard that he rather appalled even Joe Mills.

“Yeah, he’ll fire me,” agreed Joe slowly. “But that’s fine, ma’am. I’m kinda sour on this county, anyway. Seems to me that I’d kinda like to go somewhere else, where there’s green grass and lakes. I’ve allus lived here, yuh see. Don’t you worry about me, ma’am; you’ve got a-plenty to worry about for yourself.”

“Thank you, Joe. I’m glad you don’t blame me. It had to come. He—he wasn’t so bad until they elected him sheriff. We got along, yuh know. Goin’ onto three years now. I—I hoped they’d defeat him last election.”

“Shore. Prob’ly been better if they had. But they say he’s the best sheriff they ever had—I dunno.”

“Because he sent my son to prison,” she said painfully.

“Yeah. It was his son, too.”

“Joe, you know Harry wasn’t a thief, don’t yuh?”

“I don’t reckon he was. The JB outfit started out to git Harry—and they got him.”

“His own father got him, you mean!” exclaimed Mrs. Deming. “Jim was alone when he found that evidence at Harry’s place. It was nothing but a JB hide. Jim could have buried it and warned Harry. That hide was planted there by the JB. But Jim took the evidence and arrested Harry. Ten years! It was Jim’s evidence that sent my boy to the penitentiary.”

“Yes, ma’am.”

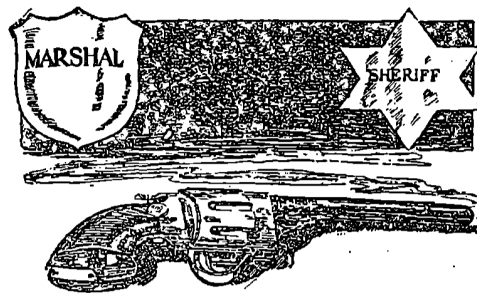
“And he sent Al Seymour up for stealing a horse, which he didn’t steal. Al was drunk that night and got the wrong one. It was wrong for him to get drunk, I know; but he didn’t intend to take the wrong horse. Jim knew it. Oh, yes, he did. But he went straight out and arrested Al, instead of bringing the horse back. He could have explained it all. Al was no thief.”

“He was going to marry Jane, wasn’t he, Mrs. Deming?”

“Yes. It broke her heart, Joe. I’m going to her now. Oh, I’ve pleaded with Jim; talked and pleaded until my throat was raw. But what’s the use? He defends himself by saying that he swore to uphold the law, and both Harry and Al broke the law. His duty to the law! He sits in judgment on this whole desert; brags about his iron hand. Oh, it’s iron, all right. It smashed his home; it will smash him, too.”

“I dunno; he’s pretty hard, ma’am. I never knowed a man as hard as Jim, and I’ve knowed a lot of hard ones. His job is a religion with him.”

“And some day it will raise up and kill him.”



“His star is his god,” said the deputy slowly.

“And don’t the Bible say something about thou shalt have no other gods before me?”

“Mebbe. I dunno much about the Bible. I don’t reckon that God operates much around here—it’s too hot.”

“I’ve wondered about it,” she said, wearily. “I’ve prayed a lot, Joe; but nothing came of it.”

“Too hot, Mrs. Deming. I don’t reckon a fried prayer ever got any further than a fried aig. Mebbe not as far, because yuh can eat the aig. Well, there’s the town. Yuh’ve got plenty time, ’cause the train ain’t never on time. Lotsa folks would miss the train if it ever came on time.”

The train was of the mixed variety, half passenger, half freight; a branch line train, using something like seven hours to complete the sixty mile run from Santa Leone to Levering, which was twenty miles south of Calor.

Calor was the usual desert type of town. Perhaps a little larger, due to the fact that it was a county seat, but the buildings were unpainted, scourged by wind and sand, until they blended nicely with the gray of the desert. Two huge water tanks, thrusting their ungainly bulk upward on their scaffolding, like huge, rotund giants, with spindling legs, supplied the town with water, which was always warm.

The depot had once been painted a bright red, but time had dimmed its luster until it was a sickly pink, where any color yet remained.

The team came up to the depot platform, guided in close to the high platform. The deputy helped the woman down, and unloaded the trunk. He tied both horses securely to the platform, because they were unused to trains, and then began twisting the trunk around to the front, the woman following him.

The telegraph wires hummed in the hot wind, and there was a strong odor of pitch frying up from the planks of the platform. A man stood near the doorway to the waiting room; a tall, lean figure of a man, harsh of feature, his gray eyes deep set under beetling brows, and separated with a high-arched nose. His mouth was wide and thin lipped.

In raiment he was practically the same as ninety-nine per cent of the desert men; well-worn sombrero, colorless shirt, stringy vest, overalls, from which the color had long since fled, tucked in the tops of high-heeled boots. Around his lean waist hung a belt and holstered gun, and on the lapel of his vest gleamed the insignia of office. Such was Duty Deming, sheriff of Calor.

He shot one sharp glance at his deputy, who handled the trunk awkwardly as he rolled it out near the edge of the platform. The woman stopped short and studied the face of her husband.

"You didn't think I'd come, did you?" she asked.

"If I hadn't, I wouldn't be up here," he said slowly.

The deputy walked from the trunk to the waiting room. He had Mrs. Deming's ticket, and was going to check the trunk. The sheriff's eyes followed him.

"You don't need to blame Joe," she said.

His eyes shifted from the doorway and came back to her.

"You're not sorry?" she asked.

"What for? I've got nothing to be sorry about."

"After thirty years, Jim?"

"No. You said you'd go away. I've provided for yuh all these years, and _____"

"And sent my son to prison; drove my daughter away."

His jaw set grimly for a moment. "Well?"

"I guess that's all, Jim."

They were silent now. Came the soft humming of the rails, as the train came creeping through the desert. The telegraph instrument in the office clanked spasmodically.

"They call you Duty," she said bitterly. "And you're proud of it. You think more of that than you do of your family. Your evidence ruined the happiness of your daughter; your evidence ruined my happiness."



"I swore to do my duty," he said slowly. "I raised my right hand and swore to uphold the law. It doesn't mean that an officer can be lenient to *anybody*. I've been the best sheriff this county ever had, and I'll keep on bein' the best sheriff. The voters put their trust——"

"I've heard all that, Jim. I'm going away now; going to be gone forever. I'll never come back to the desert—to you. You've made a god of your job, Jim. Maybe they'll put up a monument to you some day."

The train whistled shrilly, as it came into view. The deputy came out and gave Mrs. Deming her ticket and her trunk check.

“Thank you, Joe,” she said, holding out her hand. They shook hands, and she turned her back on her husband, watching the train come in. There were only a few people at the station. The engine clanked past and the train ground to a stop. The sheriff’s eyes were looking down the train, and without a word he walked away from his wife and strode down the platform.

She looked curiously after him, but he did not look back. So this was his good-by. Stifling a sob she climbed up the steps of the coach and went inside, while the agent’s helper threw her trunk in the baggage car.

Duty Deming walked down to a box-car and hunched on his heels, speaking to a man who clung to the rods beneath the car.

“Come out of that,” he ordered gruffly.

The man slowly edged off the rods and almost fell headlong. His legs were cramped from the uncomfortable position, and he was black with dirt and sand; his clothes driven full of it.

“Stealin’ a ride, eh?” grunted the sheriff.

The hobo straightened up, looked around through bloodshot eyes, which finally came back to the sheriff. The train was moving again.

“What’s the big idea?” asked the hobo hoarsely. “What right have you to drag me off here? You’re just a hick sheriff and this is a little town. I was just travelin’.”

“Stealin’ a ride,” said the sheriff grimly. He did not look up as the coaches passed him. “You know it’s agin the law, young man.”

“That’s up to the railroad company. Or do you own this particular branch?”

“No, I don’t own the railroad,” replied the sheriff harshly, “but I do represent the law around here.”

“Represent it, eh?”

The hobo sighed deeply and looked at the passing coaches. The sheriff did not look at them.

“Hot ridin’ under there,” said the hobo. “I was just heading out of this country. Tough riding, I’ll tell you; but they had all them box-cars sealed. Still, I could have made it to Levering.”

“Well, yuh didn’t!” snapped the sheriff.

“That’s true. Still, you haven’t any rock pile. All you can do is to put me in jail and feed me. That’s not a profitable thing. Better let me sit here in the shade, until the next train comes along.”

“And let you steal another ride, eh?”

“What do you care, as long as you don’t own the railroad?”

“I’m paid to uphold the law,” said the sheriff stiffly.

The hobo sighed wearily, as he scraped his heel against the cinders.

“Do you always uphold the law?”

“Always—that’s what I’m here for.”

“A little authority has made you your brother’s keeper, eh?”

“I’m the sheriff.”

“Oh, I can see that. But what right have you to haul me off that train? It isn’t your train. You’re not paid to guard that train, are you? Don’t shove me. Can’t you see I’m a sick man?”

“Sick man!” sneered the sheriff. “Sick because I’m goin’ to lock yuh up for a few days. Don’t play ’possum with me.”

“I’m not playing ’possum, as you say; I’m sick.”



The man really looked sick, in spite of his grimy face, but the sheriff twisted him around by the shoulder and started him toward the jail. Several persons, including the deputy, waited on the depot platform to see what the sheriff was going to do, and as the sheriff marched his prisoner past them he told the deputy to come with him.

The deputy followed down to the jail, where the hobo was locked behind the bars. The deputy made no comment, but followed the sheriff back to the office, where they sat down.

“Said he was sick,” remarked the sheriff disgustedly.

“Looked sick,” said the deputy wearily, fanning himself with his sombrero.

The sheriff studied the lean face of his deputy for a length of time. "How did you happen to bring the old lady in today, Joe?" he asked.

"She asked me to. I came past the ranch. I told her I'd take the team back and get my horse. She was comin', anyway," as though to defend his position in the matter.

"She was, eh? You never stopped to think that you were workin' for me, did yuh? You waste a day, bringin' her in, and waste another day in goin' back with that team. Do you think I'm payin' you to use up time that way?"

The deputy flushed slightly and his lips tightened.

"I didn't know that *you* paid me anythin', Deming. Ain't I paid by the county?"

"I'm part of that county, Joe; the sheriff part of it. I hired yuh, didn't I?"

The deputy got slowly from his chair and put on his hat.

"You hired me, Deming, but I'll be damned if you fire me; I quit right now."

"All right; suit yourself."

"I intend to, Deming. In fact, I intended to quit yuh when I came down here. You never even told yore wife good-by; just walked away to arrest a hobo, who wasn't doin' you any harm. Yo're plumb loco over duty, ain't yuh? I'm scared of yuh, Jim; honest, I am. Yore wife said you was worshippin' that tin god on yore vest; that sheriff's star. I reckon yuh are.

"She said somethin' about it raisin' up and killin' yuh. Said somethin' about what the Bible said about not havin' wrong gods. I don't sabe just what she meant. But I do sabe how she feels toward yuh. Deming, you've gone crazy over duty to the law. It's all right to enforce the law, but yo're just a damn' fool over it. I knowed you was crazy when yuh sent Harry to the pen. You didn't need to do it, and you know yuh didn't. Oh, I'm glad I quit yuh."

Deming's face flushed hotly and he started to rise from his chair, but sank back heavily, a queer expression in his hard gray eyes.

"What did she mean by sayin' that it would rise up and kill me?" he demanded. "That's fool talk; women's talk. Nobody can scare me. I'm glad yuh quit, if yuh feel the way yuh do about me—and yore job. You didn't always fulfill yore oath, Joe. Mebbe it's best that yuh did quit. I'm goin' to be more particular in the next deputy I hire."

“They’ll probably be, too,” said Joe. “You’ll have a hell of a time, hirin’ a new man, ’cause everybody knows how hard yuh are, Deming. Well, I’ll pack my stuff and get out.”

“All right, Joe; give me your star. And them ca’tridges in yore belt belong to the county.”

Several days passed in which Deming was obliged to run the office alone, which meant that twice a day he must carry food to his prisoner, against whom no formal complaint had been made. But the hobo was far too ill to care whether he had food or freedom. He spent most of the time on his cot, talking deliriously, and in the dim light of the little cell the sheriff could see nothing wrong with the man, except a fever.

But finally he called in the doctor, who was also the coroner, and he immediately pronounced it a malignant case of smallpox; quarantining the jail. He was minded to quarantine the sheriff, but while he was making up his mind just what to do a cowboy, Slim Delong, fairly tore up the street of Calor, bringing news of a murder.

Delong was fairly incoherent. Red Cowan, another cowboy working for the JB outfit, had murdered Al Mitchell, owner of the outfit, and had headed for the lava beds. Delong, riding in at the ranch, had seen Red Cowan riding away swiftly toward the lava bed country, and a few minutes later he had found Mitchell lying on the front porch, shot through the heart.

Mitchell was a big cattleman in that part of the country, and the sheriff’s son had been sent to the penitentiary for stealing Mitchell’s cattle. The town was rather in an uproar over the murder, but the sheriff did not ask any of the cowboys to ride with him.

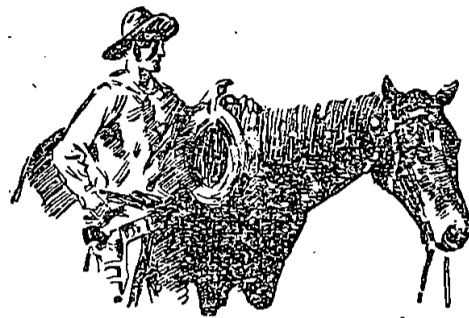
He saddled his roan horse, tied a quantity of food to his saddle, filled a canteen and headed for the lava bed country. He did not need help. He knew every inch of the lava bed country, although he did not know Red Cowan. Red had only been there a short time and he had heard Joe speak of meeting him at the JB.

Shortly after Delong had delivered his message to the sheriff, Delong imbibed a few drinks before starting back to the JB ranch with the coroner and several others, who were going out there to bring the body to town. He

happened to be riding a half-broke bronco, and in the flurry at the hitchrack, as they were starting out, Delong's horse bucked wickedly, throwing Delong against one of the hitchrack posts.

In the parlance of the range, it knocked Delong flatter than a snake's belly, and he was unable to get on his horse; so they half carried, half led him back to the saloon, where they left him propped up in a chair.

The sheriff did not hurry his horse. He swung in west of the JB ranch and headed for the lava bed country, making no attempt to pick up the tracks of Red's horse. He knew that Red would cut straight through the lava beds and head for the Mesquite River country, sixty miles away; sixty miles of waterless waste, a broken mass of twisted lava, which seemed never to have cooled since those prehistoric days, when it had been poured indiscriminately over the landscape.



The sheriff felt reasonably certain that Red Cowan had started without any preparations for food or water, and would probably expect, at least, to find water. But there was no water in that part of the country. And a man must ride slowly, because the sharp lava would soon ruin the feet of his horse, unless the animal was allowed to make its own pace.

Mile after mile he plodded along, squinting his eyes against the glare of the sun, until he developed a queer sort of a headache; a dull throb in the back of his head, which caused him to wince at times. It bothered his eyes. He drank from his canteen, but the water did not seem to quench his thirst.

His mouth felt dry a moment later; so he took another drink, which caused him a slight nausea. Must be the sun, he decided. Still, the idea did not seem so good, because he was used to the sun. It made him angry. After a while he filled and lighted his pipe, but after the first few puffs of the pungent weed, he put the pipe in his pocket.

Ahead of him stretched the interminable wastes of the lava beds, where the heat devils danced before his eyes, and he cursed them aloud, as though they could heed his voice. Then it seemed as though he realized the utter absurdity of such things, and cursed himself.

The setting sun found the sheriff riding aimlessly. His eyes ached continuously now, and he had lost all desire to scan the country. But he was not going to turn back. He was following a murderer, a cold-blooded killer, and the law must be avenged.

He felt a little better when the sun went down and the short desert twilight had blended with the night; a time in which the temperature drops swiftly from a hundred and fifteen in the shade to sixty in the dark. The sheriff had ridden away without any blankets, and now he shivered in a sudden chill, which seemed to crinkle his vertebrae.

Queer thing, that chill. It rattled his teeth like castanets and increased his headache until every movement of the horse brought him fresh misery. So he dismounted, uncoiled his lariat and picketed his horse. It was only after several minutes that he was able to summon enough energy to remove the saddle.

Duty Deming was a sick man—and knew it. He thought of saddling his horse and heading for Calor, but he had lost all sense of direction. The stars blurred in his eyes, and he flopped down beside his saddle, burying his aching head in his arms.

It was possibly two hours later that the sheriff's horse nickered softly in the darkness, but the sheriff did not lift his head. Came the sound of a horse walking, and the bulky form of a horse and rider came in through the broken rocks, plainly visible by the light of the stars.

The rider drew rein near the picketed horse, as though rather surprised to find a horse there. He dismounted and discovered the rope, speaking softly to the horse. He turned away and soon discovered the sheriff.

“Sleepin’ kinda heavy, ain’t yuh, pardner?” he asked in a soft, drawling voice; but the sheriff did not move.

Coming in closer, the man scratched a match. He was of medium height, thin-faced, blue-eyed, dressed in a faded blue shirt, well-worn bat-wing

chaps, black Stetson. The light of the match glistened on the butt of a big Colt in the holster swinging at his thigh. As he removed his hat to shield the match the light glistened on his copper-colored hair.

He was Red Cowan, the murderer. He knelt down beside the sheriff and shook him by the shoulder.

“Wake up, pardner,” he said softly, but the sheriff merely grunted and began mumbling deliriously.

“Sick, eh?” muttered the red headed one. “Funny. Got a bad fever and he’s plumb loco. And it’s a long ways to a doctor. Jist what’ll I do next?”

He squatted on his heels and rolled a cigarette. After due deliberation and another cigarette he saddled the sheriff’s horse. The sheriff was not easy to arouse but he talked steadily, mumbling his words, swearing and laughing foolishly, while Red Cowan swung him into the saddle and roped him on. He swayed forward, both arms dangling loosely, while Cowan mounted his own horse and picked up the lead-rope.

Cowan took his bearings from the North Star and started out, looking back at the humped figure of the sheriff, swaying in the saddle.

“Stay with her, pardner,” he grunted. “We’ll make the old Alkali Spring ranch by mornin’, and mebbe we’ll find somebody there.”

And all through the night they wended their way through the lava beds, and it was just about daybreak when they came out at an old tumbledown ranch house. The old buildings seemed about to fall down, the corrals were in bad repair, and only one fan was left on the old windmill, which creaked in the morning breeze.

Down by the old stable was an alkali spring, where a few cattle, drifters from the herds in the Mesquite River ranges, came to drink. Red Cowan looked them over appraisingly. They meant fresh meat.

He unroped the sheriff and lifted him to the ground, propping him against the wall while he went inside. The inside of the house was not as bad as the exterior, as it had been used by some cattlemen during a recent roundup. There was a roll of blankets, tightly wrapped in a tarpaulin, swinging from a rafter, while from a tightly closed box he took flour, baking powder, salt, sugar, beans and some cans of vegetables and fruit.

“Thought there might be a cache here,” he said, as he removed the provisions.

He took down the bed-roll and spread it out on one of the bunks, before going out after the sheriff, whom he dragged in and put to bed. He looped the sheriff’s belt around a bunk post, removed his clothes, and prepared a breakfast, before attending to the horses.

The sheriff was burning with fever, tossing his arms, mumbling incoherently all the while.

After a breakfast, in which the sheriff did not join him, Cowan brought a pail of the cold water to the house and proceeded to give the sheriff a sponge bath. This treatment seemed to sooth the sick man, and he dropped into a slumber.



Cowan found an old pair of hobbles, which he put on the sheriff’s horse, and turned his own mount loose to forage. There was little to be done. Cowan did not want to leave the sick man long enough to go after a doctor, which would take at least two days; so there was only one thing for him to do, and that was to stay and see it through, hoping that someone might come along and lend them a hand.

For the next three days and nights he worked with the sheriff. There were no medicines of any kind, and it seemed to be a losing battle. He killed a steer and made beef broth, which the sheriff could not eat, gave him both cold and hot baths, worked over him like a mother over a child, and on the evening of the third day the sheriff awoke—conscious for the first time.

After a period of deliberation he remembered starting out after Red Cowan. Seated near the bed, his head in his hands, snoring loudly, was a red-headed man. The sheriff did not know any red-headed men. He was very weak; so he shut his eyes and tried to think. After a while he heard the man move, and opened his eyes.

“That’s better,” said the red-head wearily.

“Who are you?” asked the sheriff, and was surprised that his voice was so weak.

“I’m Red Cowan.”

The sheriff closed his eyes quickly.

"I guess I don't know yuh," he said slowly.

"Mebbe not. I was with the JB a while. What's the matter with yuh, anyway? You've been here three days."

"Three days?" The sheriff's eyes popped open.

Red told him all about it.

"Didn't have no medicine," he explained. "Had to do the best I could."

"Know who I was?"

"Saw yore star. Yo're Deming of Calor, ain't yuh? Yeah, I thought yuh was. I've heard of yuh. How'd yuh happen to be out there in the lava beds?"

The sheriff closed his eyes, thinking swiftly. Cowan must not know why he was out there.

"I dunno," he said. "Took sick. Must have ridden a long ways."

"You picketed yore horse."

"Oh, I wasn't plumb out until after—just awful sick."

"You shore know how to be sick," grinned Cowan. "Do you feel like some eats?"

The sheriff shook his head.

"Better not talk any more, pardner. You've been pretty sick, and it might fever yuh up, if yuh talked much."

That suited the sheriff. He didn't want to talk; he wanted to think. His eyes shifted to his belt and gun on the bunk-post at the head of his bed, and he wondered if the gun was loaded.

When Cowan went outside he lifted a hand toward the gun, and as he did so he glanced at his hand. He felt of his stubby face, and a look of horror spread over his face.

"Smallpox!" he exclaimed to himself. "That's what it is—all them little red specks. I got it from that damn' hobo!"

Cowan came back into the house, but the sheriff did not tell him. He was afraid that Cowan might leave him in fear of the disease. Not exactly that he felt an immediate need of Cowan, but he wanted to take Cowan back a prisoner.

“Still feelin’ pretty good?” asked Cowan as he busied himself around the stove.

“I don’t feel so good, Cowan.”

“Probably not. Can’t expect to. But I reckon I’ve busted the fever. How about a little broth, eh?”

“Not now.”

“Uh-huh. Tomorrow mornin’, if yo’re feeling pretty good, I think I’ll head for Mesquite River and send some folks in to take care of yuh. You need a doctor pretty bad, and you’ll need the right kinda food.”

That was not so good. The sheriff huddled down in bed, trying to think of some way to prevent Cowan from leaving. Just now his thoughts ran in circles, because his head ached again. Ten minutes later he was delirious again.

And all that night Cowan had to use force to keep him in bed. He babbled of murderers, horse thieves and of his own prowess as a sheriff. And in the light of the candle Cowan saw the rash on the sheriff’s hands and face.

“Smallpox!” grunted Cowan. “So that’s what’s the matter, eh? Lucky I’ve had a good dose of it. Tomorrow I’ll tie him down and head for a doctor.”

It was daylight again before the sheriff became conscious. The fever had abated enough to allow him to realize and recognize again. Cowan’s face was drawn and tired, his eyes red from lack of sleep.

“Sane again, eh?” he grunted. “Well, you’ve shore been off yore nut a plenty, pardner. Listen to me and get this straight. I’m goin’ out and round up my bronc. You’ve got a sweet case of smallpox, which means yo’re goin’ to be here mebbe a couple weeks. I can’t stay all that time; so I’m headin’ for Mesquite River to get yuh a doctor and a nurse.



“Yuh take her easy while I get my horse. Mebbe I better tie yuh down, ’cause you might go wanderin’ around and die out in the desert. Anyway, yo’re all right for a while, and I’ll see yuh before I pull out. I’ll leave plenty water, such as it is, where yuh can reach it. But you’ve got to have plenty nursin’ and the right kinda food.”

Red Cowan picked up his rope and went out, leaving the sheriff staring at the rafters, trying to force his mind to function properly. He didn't want Red Cowan to leave him. He had never failed to bring in his man, and if Red Cowan ever left that ranch——

His hand reached up weakly and drew the heavy Colt from the holster. It was fully loaded. The weight of it quickly tired his wrist, and he stared at his bloodless hand. The fever had sapped his strength badly, and he lay back wearily, cursing himself for a quitter.

He was no match for Red Cowan now. Hadn't Cowan said something about tying him down? The sheriff tried to sit up. If Red Cowan tied him down——

"Get up, you fool!" he told himself. "Yo're all right. Are you goin' to lie here and let a murderer escape? You are Duty Deming, sheriff of Calor!"

With a superhuman effort he managed to swing around on the bunk and get his feet over the edge; but toppled back, where he lay breathing heavily, gripping the gun in his right hand.

He could feel the fever coming back, but he would not let that stop him. It was now or never. No thought of the future——only the present. The law must be served.

He managed to reach the doorway, where he went to his knees, blinking out at the sunlight. It dazzled his eyes, until the tears ran down his cheeks, and he dropped his head to one knee, covering his eyes with his arm.

"No other gods before Me," he muttered. "What did she mean? What would rise up and kill me?"

His fumbling fingers tried to locate his star, not realizing that he wore nothing but his underclothes. He laughed foolishly in the crook of his elbow. His mind was clouding again.

"I can't die," he told himself. "It's my duty to live. I've got to live!"

He got slowly to his feet, fighting hard. "They'll hang him——hang Red Cowan. Eye for an eye. The law demands that. I'm the law of Calor, ain't I? Don't the law demand his life?"

The sheriff sagged wearily, gripping the side of the door with his left hand.

"I'm the law," he muttered drunkenly. "I demand——"

The fever cloud was enveloping him again, and the little blue devils with their sledges were beating on his brain, trying to batter him into insensibility.

Where was Red Cowan, he wondered? Where had he gone? He was obliged to use both hands to cock the Colt. Red Cowan. That was what he wanted. The man with the flame-colored hair. There was no gratitude for what Red had done for him. No thought of the days and nights of nursing. The law must be satisfied, and Duty Deming was the law.

He went stumbling across the uneven ground, sagging at the knees, his head swinging from side to side, almost trailing the cocked revolver in his right hand; fighting, fighting all the while.

Then he saw his quarry just at the corner of the old stable. It was Red Cowan, looking at him. The big Colt swung up and his finger tightened on the trigger. The recoil jerked the gun from his hands and he almost fell.

He did not look for the gun. One shot had been enough. He hunched one shoulder against the old stable wall, gasping for breath. The law had been satisfied. He closed his eyes for a moment. The devils were still hammering on his brain, but above it all he could hear another sound; a thump, thump, thump of horses walking.

Slowly he opened his eyes and tried to see what the blurred thing was. He knew it was a man on a horse, although his eyes did not register the figures.

“Jim Deming!” said a voice. “For God’s sake, Jim!”

It was Joe Mills, the ex-deputy.

“Don’t yuh know me, Jim?” he asked.

“This is Joe Mills.”

“I know,” whispered Deming. “Yuh quit me.”

“Aw, forget that. We’ve been huntin’ all over the country for you, Jim; and I——”

“I had to do my duty,” whispered Deming. He lifted his right hand with a supreme effort and pointed a finger waveringly.

“That’s Red Cowan,” he said.

“Yo’re crazy!” blurted the deputy. “That ain’t Red Cowan.”

For several moments the sheriff did not move. His face twisted strangely. "You say that ain't Red Cowan?" he whispered hoarsely.

"Of course not, you danged fool."

"Don't lie to me, Joe! My God, don't lie."

"I ain't lyin', Jim. Yo're crazy, I tell yuh. Of course this ain't Red Cowan. I know Red."



For a moment the sheriff's head sagged heavily, but he swung himself away from the stable, started toward the house on uncertain legs, but collapsed, falling flat on his face.

"Now, wouldn't that rasp yuh!" snorted the deputy, as he swung off his horse and walked over to the prostrate sheriff. He picked him up and took him to the shade, where he laid him on the ground.

Something about the sheriff caused the deputy to make a quick examination.

"I'll be totally darned!" he said slowly.

Then he turned his head and saw Red Cowan, riding in from beyond the stable; riding a bareback horse and leading another.

"Hello, Mills!" yelled Cowan. "Where'd you come from?"

"C'mere," said the ex-deputy, and Cowan rode up to him.

"By golly, I thought I should have tied him down," said Cowan.

"He's dead," said Mills slowly.

"Dead? Whatcha know about that? I found him several nights ago, plumb flat over there in the lava beds. He was too sick to talk; so I brought him here. I've had one hell of a time, nursin' him, Joe. Got smallpox, I reckon."

"Measles," said Joe. "Must 'a' got 'em from a hobo he had in jail at Calor. Hobo almost died, too. Didn't Deming tell yuh what he was doin' in the lava beds?"

"Too sick, I guess."

"He was lookin' for you, Red. Wanted yuh for the murder of Mitchell."

"What?"

"Fact. Delong brought the news of it, and Deming started on yore trail. But Delong got throwed against a hitchrack post that mornin', and it hurt

him so bad he died that same afternoon. But before he died he confessed to murderin' old Mitchell himself. He just thought he'd put the deadwood on you, 'cause you quarreled with Mitchell before yuh quit."

Red Cowan laughed shortly. "So that was it, eh? Deming didn't mention it to me. Mebbe he was too sick."

"Prob'ly. Too bad he didn't live longer, Red. Delong confessed that Mitchell hired him to plant evidence that sent Harry Deming to the pen. We'll have Harry out in a few days."

"Well, I'll be danged!"

"Queer, ain't it?" mused Joe, looking down at the body of the sheriff. "His wife said that some day his star would rise up and kill him. She said he was makin' a god out of his star. I dunno, Red. Things have a queer way of workin' out. If he hadn't been so strong on duty he'd never have taken that sick hobo off that train. Deming always had the idea of bein' his brother's keeper, yuh know."

"That's what I've heard. Duty they called him, didn't they?"

"Yeah. Awful set in his ways. I suppose we might as well start back with him."

"Sure; might as well. Sorry I didn't rope him down. But he seemed to be all right when I left. Fever made his heart weak, I suppose. But he never told me he was after me, Joe."

"He wouldn't. I can figure out where he got the measles and I can figure out why he didn't tell yuh what he was doin' in the lava beds, but I'll be damned if I can figure out why he killed the red bull calf and said it was you."

"I didn't know about that, Joe. He must have been crazy."

"Mm-m-m-m," said Joe slowly. "I s'pose he was. Red, do yuh believe in them Ten Commandments?"

"Never read any of 'em. What are they about?"

"Everythin'."

"Must be good, eh?"

"Worth readin'. Git a rope and we'll take him home."

Transcriber's Note: This story appeared in the January 25, 1928 issue of *Short Stories Magazine*.

*** END OF THE PROJECT GUTENBERG EBOOK HIS BROTHER'S
KEEPER ***

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